

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-24

Southern International Co., LTD

Complainant,

v.

Daynamez Group of Companies LLC

Respondent.

RESPONDENT'S MOTION TO STRIKE RESPONSE TO MOTION TO DISMISS

Comes Now the Respondent, Daynamez Group of Companies LLC, and would reply in part to the Opposition to the Motion to Dismiss forwarded by Southern International Co., Ltd by filing this Motion to Strike the Response as it reserves its right to file a Reply to the substance of the Response and would state the following:

1. A Complaint was served with the Federal Maritime Commission on August 26, 2025.
2. A Motion to Dismiss was filed on this matter before the government shutdown.
3. A response by the Complainant to the Motion to Dismiss was forwarded after the government shutdown by the Complainant.
4. Federal Rule of Civil Procedure 12(f) provides for Motions to Strike.
5. The Response was forwarded by an attorney from Vietnam named Hein Ngueyen, who is believed to not be a United States attorney or a Federal Maritime Practitioner. See attached cover letter. **Exhibit A.**

6. The cover letter that was attached with the Motion appears to be in the form of representation without a Notice of Appearance having been filed on this matter by Hein Nguyen. See attached letter.
7. It is noted that the Federal Maritime Commission is currently closed and a copy of this Motion to Strike will be filed with the Commission upon its reopening.
8. The attorney who forwarded the response, Hien Nguyen, is an attorney in Vietnam. It does not appear that the attorney is admitted to a United States Court. Prior to filing this Motion, the undersigned sent a good faith email to opposing counsel trying to confirm whether or not he is a member of a court in the United States and received a Response email stating that a Director and legal representative of the Complainant could file papers, but the cover letter states that Hien Nguyen is the attorney. The document attached to the cover letter is signed by Nguyen Tien Phoung but the cover letter making a legal argument was sent by Hien Nguyen.

46 CFR 502.26 specifically states: "Attorneys at law who are admitted to practice before the Federal courts or before the courts of any State or Territory of the United States may practice before the Commission. An attorney practicing before the Commission is expected to conform to the standards of conduct set forth in the American Bar Association's Model Rules of Professional Conduct in addition to the specific requirements of this chapter. [Rule 26]."

9. As it is believed that the Response was forwarded by an attorney who is ineligible to practice before the Federal Maritime Commission, The

Response should be struck from the proceedings upon its filing. If Mr. Hein Nguyen is admitted to a United States Court, then he should state this in the cover letter.

10. The Complaint was filed by an alleged Director of the company, Nguyen Tien Phoung, but the Response was forwarded by an attorney from Vietnam.

Dated: November 10, 2025

CERTIFICATE OF SERVICE

I certify that on the 10th day of November 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant.

Served to:
Mr. Hien Nguyung
64 Truong Dinh Str,
Xuan Hoa Ward
HCMC, Vietnam
legal@southern.com.vn

Respectfully submitted,

Daniel W. Raab. P.A.

s/Daniel W. Raab
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